
Appeal Decision

Site visit made on 10 July 2026

by Mr D Szymanski BSc (Hons) MA MRTPI

an Inspector appointed by the Secretary of State

Decision date: 15th September 2026

Appeal Ref: 6007334

Hillcrest, Chalton, Luton LU4 9UB

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant permission in principle.
 - The appeal is made by Hillcrest Homes (BEDS) Ltd against the decision of Central Bedfordshire Council.
 - The application Ref is CB/25/03867/PIP.
 - The development proposed is residential development comprising a minimum of 1 and a maximum of 9 dwellings.
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Decision

1. The appeal is dismissed.

Applications for costs

2. An application for costs is made by Hillcrest Homes (BEDS) Ltd against Central Bedfordshire Council. This application is the subject of a separate decision.

Preliminary Matters

3. The Planning Practice Guidance (PPG) advises that permission in principle is an alternative way of obtaining planning permission for housing-led development. This consent route has 2 stages: the first stage (or permission in principle (PIP) stage) establishes whether a site is suitable in-principle and the second (technical details consent (TDC)) stage is when detailed development proposals are assessed. This appeal relates to the first of these 2 stages.
4. The scope of the considerations for PIP is limited to location, land use and the amount of development. All other matters are considered as part of a subsequent TDC application if permission in principle is granted. I have determined the appeal accordingly. The application is for a range of between 1 – 9 dwellings which I have had regard to in determining the appeal.
5. Since the appeal was lodged the Government has published the revised National Planning Policy Framework (2026) (the Framework) and the 2024 and 2025 Housing Delivery Test (HDT) results, which I have given the Council and the appellant the opportunity to comment upon, and taken into consideration in the determination of this appeal.

Main Issues

6. The main issues are whether or not the location, land use and amount of development would be acceptable with particular reference to:

- designated habitats sites; and,
- policies for development in the Green Belt.

Reasons

Designated habitats sites

7. The appeal site is within a 12.6km zone of influence (Zol) of the Chilterns Beechwoods Special Area of Conservation (SAC), as a designated habitats site under the Conservation of Habitats and Species Regulations 2017 (as amended) (the Regulations). The Regulations require where a project may result in likely significant effects (LSEs) upon a habitats site, the competent authority shall make an Appropriate Assessment (AA) of its implications on the site's integrity in view of its conservation objectives. Any LSEs need to be considered alone and in combination with other development, adopting the precautionary principle.
8. The SAC's qualifying features are its beech forests on neutral to rich soils, semi-natural dry grasslands and scrubland facies on calcareous substrates, and the stag beetle. Its conservation objectives are to maintain and restore the extent and distribution of the natural qualifying habitats and habitats of the qualifying features, the structure, function and supporting processes of the qualifying natural habitats and habitats of the qualifying species, and the populations and distribution of the qualifying species within the site.
9. Evidence shows that recreational visits to the SAC result in disturbance with adverse effects that affect its integrity, such as trampling damage, erosion, tree root damage, and eutrophication from dog fouling¹. Advice from Natural England (NE) as set out in the Council's Mitigation Strategy² (MS), confirms that any net increase in dwellings in the Zol would be likely to result in more recreational visits with consequential damage and LSEs, so need to provide adequate mitigation and avoidance measures to rule out LSEs, and maintain the integrity of the SAC.
10. Measures in the MS comprise Strategic Access Management and Monitoring (SAMMS) and Suitable Alternative Natural Greenspaces (SANGS). SAMMS directly manage and avoid impacts at the SAC and SANGS are alternative greenspaces created or enhanced to absorb recreational pressure that would otherwise occur at the SAC. These can be funded by a per dwelling contribution based upon published costings to ensure the level of contribution delivers all necessary mitigation to prevent LSEs upon the SAC. Therefore, securing SAMMS and SANGS are important to offset LSEs from each new dwelling.
11. The appellant considered a Unilateral Undertaking (UU) was not necessary, given the statutory structure of PIP, advice in the PPG, the absence of caselaw, reference to a judgement³, and the Council's MS anticipating mitigation at the TDC stage. The PPG is policy and, like the MS, does not prevent mitigation being secured at the PIP stage.
12. The legislation is that PIP cannot be granted for 'habitats development' under the Order⁴, which is defined as development which is likely to have a significant effect

¹ Visitor survey, recreation impact and mitigation assessment requirements for the Chilterns Beechwoods SAC and the Dacorum Local Plan by Footprint Ecology (2022).

² Central Bedfordshire Council Mitigation Strategy for Ashridge Commons and Woods SSSI (2022).

³ C.G. Fry & Son Limited v Secretary of State for Levelling Up, Housing and Communities & Somerset Council [2025] UKSC 35.

⁴ The Town and Country Planning (Permission in Principle) Order 2017 (as Amended).

upon a designated habitats site. Moreover, the Regulations apply to the consent of projects and not just development, and they impose a duty on the maker of that decision to only permit the plan or project if LSEs upon a designated habitats site can be ruled out. Therefore, necessary and adequate mitigation to prevent LSEs must be secured at the PIP stage, for it to be approved.

13. NE has been consulted upon the appeal proposal and is satisfied the SANGS and SAMMS contributions proposed would be sufficient to mitigate the LSEs. However, the appellant's UU proposes contributions for the SANGS and SAMMS that are lower than the current costed per dwelling tariff.
14. To secure the fully necessary mitigation, for SAMMS the contribution is £202.54 per dwelling and for the SANGS it is £3,565 (1-bedroom/studios) or £4,750 (2+ bedrooms). However, the UU defines the contributions as £182.49 for SAMMS and £3,205 (1-bedroom/studios) or £4,273 (2+ bedrooms) for SANGS. Therefore, the UU does not secure full adequate mitigation for each dwelling to ensure there would be no LSEs. The UU definition of planning permission, its implications for legally securing correct contributions for the number of permitted dwellings, and the red line on title plan differing from the application plan add to my concerns.
15. The appellant does not dispute the figures are incorrect and considers they should be indicative. However, given the duties under Regulation 63(5) of the Regulations, it is of fundamental importance the UU legally secures the correct adequate contribution before a PIP is consented, otherwise the legal duty is not met. Therefore, I simply do not have a UU before me securing full, adequate mitigation. The appeal scheme makes no other provision to adequately mitigate the LSEs and thus maintain a favourable condition and the integrity of the SAC. Applying the precautionary principle and in the absence of full and adequate mitigation, I cannot be certain the appeal scheme would not have LSEs on the integrity of the SAC, so would fail to adhere to its conservation objectives.
16. The scheme comprises habitats development excluded from a grant of permission under Article 5B of the Order. Section 63(5) of the Regulations states the competent authority may agree to a plan or project, only after having ascertained that it will not adversely affect the integrity of a habitats site. Therefore, I cannot allow the appeal. The appellant has not demonstrated there are no alternative solutions to providing inadequately mitigated housing at the appeal site. Imperative reasons of overriding public interest do not exist and there are no other considerations that clearly outweigh the harm to the SAC.
17. Therefore, for the reasons set out, I cannot be certain the location, land use and amount of development would not adversely affect the SAC. It conflicts with the Regulations, the Order, and Policy EE3 of the Central Bedfordshire Local Plan (2021) (the LP) which requires proposals that affect designated habitats sites must satisfy the Regulations. It conflicts with policy N6 1) a) of the Framework which states that if proposals result in harm to habitats sites they should be refused unless an AA concludes it would not adversely affect the integrity of the site, they satisfy derogation tests, or it is addressed through an Environmental Delivery Plan.

Green Belt

18. Policy SP4 of the LP states that within the Green Belt there is a general presumption against inappropriate development, and proposals will be assessed in accordance with government guidance within the Framework and PPG.

Framework paragraph GB6(2) explains that inappropriate development is, by definition, harmful to the Green Belt and should not be approved except in very special circumstances. Development in the Green Belt is inappropriate unless it falls within one of the categories in policy GB7.

19. One of the exceptions at GB7 g) is for Grey Belt land, subject to various criteria being met. Initially, to qualify as Grey Belt land, the proposal should be on land that does not strongly contribute to Green Belt purposes a), b) or d) in GB2. There is no dispute the land does not strongly contribute to towards purposes b) and d). Purpose a) is to check the unrestricted sprawl of large built-up areas.
20. The Council's Green Belt Study (2017) shows the site being within wider parcel (HR2) considered to make a strong contribution to purpose a). I am informed the site is approximately 250m north of the boundary of Houghton Regis (HR) North (HRN), which is an urban extension to HR, which is a large built-up area.
21. The site comprises land around a bungalow including garden, landscaping and outbuildings well contained by surrounding by trees and bunding, beyond which it is strongly enclosed by the B579 Luton Road on two sides, the access road off it, and the M1. Given the distance to the edge of the HRN urban extension development, housing at the site would not be viewed as a continuum of the urban extension, but as a modest separate discrete scheme.
22. Having regard to the guidance upon purpose a) in Framework Annex E, the distance means the site is not near to a built-up area or would result in an incongruous pattern of development, the latter of which could be secured at the TDC stage. In my judgement, I consider the highways, and vegetation on and surrounding the site, would restrict development. Such is the width and engineered developed nature of these in my judgement they strongly contain and enclose the site. The highways, noise and associated infrastructure such as street lighting, fencing, and hardstandings are urbanising influences.
23. It is not demonstrated, and I do not believe its containment, shape, extent and some built development comprising dwellings at the lower to middle of the range proposed, would result in there being a compelling case for land to the south or west of the appeal site to be developed. In my judgement, the land makes a weak to moderate contribution to purpose a).
24. I note the main parties' commentary of a recent judgement⁵, to which I have had regard. Given its limited scale, its degree of containment, and distance to and relationship with development I was able to see and referred to, and the level of housing need in the Council area, consenting to the site being developed with a limited number of dwellings would not fundamentally undermine any of the purposes a) – e), of the remaining Green Belt across the area of the plan. Therefore, the proposal meets GB7 g) i).
25. The Council cannot demonstrate a deliverable 5-year housing land supply (HLS), which is a test referenced in footnote 41 for GB7 g) ii) as evidencing unmet need for this type of development. There is a lit footway to Chalton a modest distance away where there are a small range of facilities and bus stops to larger settlements. The site is also within a reasonable walking distance of part of HR which has some services and facilities to meet day to day needs. This limits the

⁵ Referred to at Appendix 5 of the Appellant's Appeal Statement.

need to travel, particularly by private car, and offers a genuine choice of transport modes for residents.

26. The scheme could support improved sustainable transport use and patterns of movement and enable access for different users. I see no reason why it could not comply with objectives in respect of mitigating or avoiding adverse environmental effects of traffic and transport infrastructure. Highway Authority consultation responses indicate access for a development of up to 5 dwellings could be adequately catered for within land under the appellant's control, so I can be satisfied there would not be significant adverse effects upon the transport network upon this basis. Therefore, I consider TR3 and GB7g) iii) would be met. As it would not be major development, it is unnecessary to satisfy GB7 g) iv).
27. From what I saw and the substantive evidence before me, I find the appeal scheme based upon an amount of housing at the lower to middle of the amount proposed would meet the exception at Framework policy GB7g) and not constitute inappropriate development. In-light of this finding, there is no need to assess the effect upon openness, which is implicitly taken into account in this exception, or, whether or not there are other considerations and whether they amount to very special circumstances.
28. Therefore, for the reasons set out above, the proposal would not be inappropriate development in the Green Belt. It would be compliant with Policy SP4 of the LP, and GB7 of the Framework, the relevant provisions of which I have set out above.

Planning Balance

29. At the upper end of the number of dwellings, the proposal could result in moderate temporary economic benefits during TDC submission, design and construction, and once complete some on-going benefits such as support to local services and facilities, contributing to the vitality of the area. It would contribute to meeting demand for local housing needs and could be designed to meet a range of differing access needs. I am informed the Council can demonstrate a HLS of the order of 3.93 years.
30. Policy HO7 requires that substantial weight should be given to the benefits of providing homes which will contribute towards meeting the evidenced needs of the community. Were I to agree the appeal scheme falls within the definition of Policy S5 1) h) or j) it should be approved, unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against the national decision-making policies in the Framework.
31. It is possible that through carefully designed schemes at the TDC stage, the appeal scheme could secure small beneficial overall effects in respect of matters such as landscaping and biodiversity, and a largely neutral effect upon the character and appearance of the area. Were I to agree the appeal scheme would or subject to suitable schemes at the TDC stage could be made compliant with policies and standards in respect of matters such as highway and access matters, access to services and facilities, the living conditions of future and neighbouring occupiers, resource and energy efficient design and construction, and ensuring an adequate assessment of the effect upon and mitigation for any protected species, these would be neutral matters in the balance.

32. The appeal scheme would provide a number of important benefits attracting full weight in its favour. However, the proposal would not adequately secure full mitigation for LSEs upon the SAC, so Regulation 63(5) of the Regulations, and the Order, both preclude the proposal from proceeding. While not appearing to specifically be a national decision-making policy, the breach of this legislation are matters of fundamental importance and attract weight of a very high order against the scheme. Harm to a designated habitats site provides a strong reason for restricting the overall scale, type or distribution of development. The harm and legislative and policy conflicts substantially outweigh the benefits of the proposal for any number of dwellings in the range proposed. Therefore, for the reasons given, the appeal should not succeed.

Conclusion

33. The proposal conflicts with the development plan read as a whole, the Framework read as a whole, the Regulations and the Order. There are no material considerations advanced, including the policies of the Framework, which indicate the decision should be made other than in accordance with the development plan, the Order and the Regulations. Therefore, for the reasons given, the appeal should not succeed.

Dan Szymanski

INSPECTOR